

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
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Argument-Held Minute Sheet

United States Court of Appeals for the Fourth Circuit

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

No. SYN-CA4-26-CV-4105

Entered May 6, 2026

Oral argument was held at 10:00 a.m. before Composite Jurist March, presiding, Composite Jurist Rowan, and Composite Jurist Slate. Maya Holt argued for appellant Blue Ember Biologics, LLC and reserved two minutes for rebuttal. Eli Mercer argued for appellee Granite Heron Logistics, Inc. Jonas Bell and Tara Webb attended as additional counsel of record. The Fictional Fourth Circuit exercise clerk recorded appearances and time.

Counsel used the twenty-minute total allocation stated in the April 24 notice. Questions focused first on whether a motion that says causation only and assigns mitigation to the jury can provide Rule 50(a) notice of a later fixed mitigation request. The panel asked counsel to apply *Plyler v. Cox*, 145 F.4th 501, 510–11 (4th Cir. 2025): a distinct basis first raised under Rule 50(b) is unavailable, but the general sufficiency issue raised under Rule 50(a) remains reviewable. The panel separately noted that *Wiener* concerns appellate variation after Rule 50(b) preservation.

The court also asked whether the district judge’s Rule 59 findings were analytically independent, whether gross damages and mitigation must be retried together, and what Rule 50(c)(2) requires if JMOL is reversed. No exhibit was received, no record correction was requested, and no ruling issued from the bench.

Submission record

Blue Ember maintained that the pre-verdict wording foreclosed mitigation JMOL while accepting abuse-of-discretion affirmance of the conditional financial retrial. It requested reversal of the JMOL, affirmance of the conditional ruling, affirmance of its damages-only scope, and vacatur of the amended judgment with remand. Counsel explained that liability and causation would remain fixed and neither existing dollar amount would become immediately collectible after that disposition.

Granite Heron argued that its recoverable-delay challenge fell within the general sufficiency issue retained by *Plyler*, but confirmed that it relied on no different pre-verdict language. Blue Ember answered that mitigation was the distinct basis *Plyler* makes unavailable. Both sides agreed that *Wiener v. AXA Equitable Life Insurance Co.*, 153 F.4th 413, 422 (4th Cir. 2025), addresses variation between a preserved Rule 50(b) issue and appellate theory rather than the earlier renewal boundary. Granite Heron alternatively agreed that, if the panel reversed JMOL, the Rule 59 ruling and limited scope should remain.

The panel questioned the parties about the shared delay-model inputs, the separate burdens on caused loss and mitigation, the special verdict's itemization, and the absence of any claimed liability compromise. Maya Holt completed her reserved rebuttal. The presiding jurist then announced that the case was submitted for decision on the briefs, certified district record, and oral argument.

These minutes record procedure only. They do not attribute a holding to any question, forecast the panel's vote, alter the appellate record, or set a decision date. Entered by direction of the fictional composite panel on May 6, 2026.